



UNIT 3 (PARTIAL) INTELLECTUAL PROPERTY

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Patents

- New invention
- Gov issued award inventor conferring exclusive right for specific period.
- Objective is to encourage new inventions that are highly useful to society
- Patent holders can also provide permission to others
- Common in technologies and IT industry

Applications ?

Types of patents

- Plant patent
- Design patent
- Utility patent

Plant

- Covers any variety of asexually produced plant
- Asexually reproduction includes
 - *Grafting*
 - *Rooting*
 - *Cloning*
 - *Budding*
 - *division*
- For around 20 years of durations

Design Patent

- Invention of new original design and appearance useful in manufacturing process
 - *Shape, visual appearance, surface decorations*
- Protects appearance
- Last for usually 14 years
- E.g.: coca cola bottle, iphone, luxury watch etc

Utility Patent

- A detail technical disclosure with list of elements
- Protects functions
 - *What does it do?*
 - *How something works?*
- Eg: electric motor, engine, medicine

Real world examples

Edison light bulb patent

- It granted Edison exclusive rights to produce and sell the invention for 20 years.
- After 20 years,
 - *The patent expired, and the invention entered the public domain.*
 - *Competitors could legally produce their own versions of the light bulb.*
 - *Innovators like William Coolidge improved the bulb with tungsten filaments, leading to better designs.*

Apple vs Samsung

- Legal battle in 2011
- Apples claim
 - *Design patent: shape of iPhone, grid of icons and round corners*
 - *Utility patent: features like bounce back, scrolling and pinch to zoom, UI and gestures*
- Initial verdict : \$1.05 billion
- Supreme court ruling in 2016
- Final settlement in 2018 Samsung paying \$ 589 million to Apple